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Pro and con arguments for food product safety bill in California Senate

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After it passed the lower house in mid-May by a floor vote of 54-to-12, the food product safety bill known as AB-418 advanced to the California Senate where it picked up a minor amendment while waiting for action by the Committee on Health.

The amendment, which means the bill will need another vote by the California Assembly, appears to only add "human consumption" as a requirement for when certain substances are banned by AB-418.

The food safety bill says that "commencing Jan. 1, 2025, a person or entity shall not manufacture, sell, deliver, distribute, hold, or offer for sale in commerce a food product for human consumption that contains any of the following:

(1) Brominated vegetable oil (CAS no. 8016-94-2).

(2) Potassium bromate (CAS no. 7758-01-2).

(3) Propylparaben (CAS no. 94-13-3).

(4) Red dye 3 (CAS no. 16423-68-0).

(5) Titanium dioxide (CAS no. 13463-67-7).

The human consumption amendment was reported by the Senate Committee of Health's chairman and was added by AB-418's author, Rep, Jesse Gabriel. It was then read a second time, amended, and re-referred to the Senate Committee on Health.

As it went to the California Senate, legislative staff provided an analysis of AB 418 that included the following pro and con arguments.

Arguments in Support

Supporters such as the EWG, Consumer Reports, and Breast Cancer Prevention Partners state the chemicals this bill prohibits are chemicals associated with serious health risks, such as increased risk of cancer, harm to the reproductive system, and harm to the immune system. But because of the FDA's inaction and regulatory loopholes, these chemicals are found in many food products, such as snacks, candy, and soda consumed by children in California and the United States.

EWG and Consumer Reports also state:

1. This bill does not interfere with ongoing federal regulation of food additives and federal law does not preempt state action on these additives;

2. Federal reviews of food additives are neither comprehensive nor active and regularly allow hazardous additives to be sold to consumers. The GRAS (Generally Recognized As Safe) loophole, originally meant for common ingredients, is exploited by companies who appoint industry-favoring panelists to designate chemicals as safe;

3. The FDA regularly fails to respond to petitions and meet other federal statutory requirements to restrict additives

that pose public health risks. For example, Red dye no. 3 has been banned from cosmetics since 1990 and yet it continues to be allowed in food;

4. Existing California law does not restrict these toxic chemicals in food; and,

5. Ingredient and warning labels are insufficient alone to protect consumers.

Arguments in Opposition

A coalition of opposition that includes the Consumer Brands Association, the International Association of Color Manufacturers, the National Confectioners Association, and the American Bakers Association oppose this bill. The opposition indicates the federal government has a comprehensive food safety process that reviews food additives. In addition, California has several laws that require removing chemicals from foods, attaching warning labels, and checking alternatives if those food additives are unsafe or expose consumers to allergies. All five of these additives have been thoroughly reviewed by the federal and state systems and many international scientific bodies and continue to be deemed safe. They also claim that the food safety process is active and should be allowed to continue the appropriate review of these five and all additives. Several substances this bill proposes to ban are subject to petitions to these government entities initiated by many organizations supporting this bill. Scientific regulators work through these processes and make determinations to establish recognized safe thresholds. Then, when appropriate and supported by peer-reviewed scientific evaluations, they require additional labels or removal from the market. Additionally, the opposition points out that there is a comprehensive system that requires ingredient labeling allowing consumers to make informed decisions. The opposition concludes that the federal government and California have developed one of the world's most robust and protective systems for food safety.

Pro or con, the analysis reports that according to the Assembly Appropriations Committee, the Department of Justice (DOJ) anticipates minor and absorbable costs as a result of this bill but notes as numerous bills this session may result in no significant impact on DOJ, should an aggregate of these bills become law, DOJ would need to request additional resources to process the increase to its workload.

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